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Attorneys for Defendants
SHANNON SMITH AND HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION (sued and served as HOPE PSYCHOTHERAPY, INC.)

UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, and individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation, Defendants.	Case No.: 3:26-cv-07504-LJC **DEFENDANTS SHANNON SMITH AND HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION'S REQUEST FOR JUDICIAL NOTICE IN SUPPORT MOTION TO DISMISS** Hearing Date: October 20, 2026 Hearing Time: 10:30 a.m. Court Room: G, 15th Floor Judge: Hon. Lisa J. Cisneros

Defendants Shannon Smith ("Smith") and HOPE Program, A Licensed Clinical Social Worker Professional Corporation ("Hope") (collectively "Defendants"), through their attorney of record, request that the Court take judicial notice pursuant to Federal Rule of Evidence 201(b) of documents filed in California Superior Court of the State of California for the County of San Joaquin in the civil action *Newanforbi v. Palacios*, Case No. STK-CV-UF-2006-0001032 (2026). The documents are "capable of accurate and ready determination by resort to sources whose accuracy cannot be reasonably questioned" and are therefore properly subject to judicial notice. *See United States v. Richie*, 342 F.3d 903, 908-09 (9th Cir. 2003); *Rosales-Martinez*, 753 F.3d 890, 894 (9th Cir.

2014) ("It is well established that [federal courts] may take judicial notice of judicial proceedings in other courts."); *U.S. ex rel. Robinson Rancheria Citizens Council v. Borneo, Inc.*, 971 F.2d 244, 248 (9th Cir. 1992) (internal quotation marks omitted) ("Federal courts may take notice of proceedings in other courts, both within and without the federal judicial system, if those proceedings have a direct relation to the matters at issue.").

Specifically, Defendants request that the Court take judicial notice of the following documents:

1. Plaintiff's First Amended Complaint filed in *Newanforbi v. Palacios*, Case No. STK-CV-UF-2006-0001032 (2026). A true and correct copy of the First Amended Complaint filed in that action is attached hereto as Exhibit A.
2. Defendants Katie Palacio and Hope's Demurrer to Plaintiff's First Amended Complaint filed in *Newanforbi v. Palacios*, Case No. STK-CV-UF-2006-0001032 (2026). A true and correct copy of the Demurrer to the First Amended Complaint filed in that action is attached hereto as Exhibit B.
3. The state court's July 15, 2026 order sustaining demurrer to First Amended Complaint without leave to amend on the grounds that the First Amended Complaint fails to allege facts sufficient to state any cause of action, filed in *Newanforbi v. Palacios*, Case No. STK-CV-UF-2006-0001032 (2026). A true and correct copy of the July 15, 2026 Order filed in that action is attached hereto as Exhibit C.

Dated: September 21, 2026

SIMS, LAWRENCE & BROGHAMMER

By: Cynthia G. Lawrence

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Attorneys for Defendants,
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EXHIBIT A

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
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Stockton, CA 95204
Telephone: (209) 801-4442
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FILED
SUPERIOR COURT SAN JOAQUIN
2026 APR 22 P 2:55
STEPHANIE BONNER, CLERK
BY MIA STIPE
DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

KATIE PALACIOS, an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive,

Defendants.

Case No. STK-CV-UF-2026-0001032

FIRST AMENDED COMPLAINT FOR DAMAGES, DECLARATORY, AND INJUNCTIVE RELIEF

(1) Fraud / Intentional Misrepresentation; (2) Negligence (incl. Negligence Per Se); (3) Intentional Infliction of Emotional Distress; (4) Intentional Interference with Prospective Economic Advantage; (5) Violation of Bane Act (Civ. Code § 52.1); (6) Declaratory Relief; (7) Violation of Bus. & Prof. Code § 17200 (Unfair Competition Law)

DEMAND FOR JURY TRIAL

Filed of right pursuant to CCP § 472(a).
Assigned: Hon. George J. Abdallah, Dept. 10A
CMC: October 13, 2026, 8:45 a.m.

INTRODUCTION

1. This is an action for damages, declaratory, and injunctive relief against HOPE Psychotherapy, Inc. (**HOPE**), a private for-profit California corporation, and its Stockton site Director, Katie Palacios (**Palacios**). HOPE contracts with the California Department of Corrections and Rehabilitation (**CDCR**) to provide California Sex Offender Management Board (**CASOMB**)-certified treatment to parolees. Plaintiff is a CDCR parolee and HOPE participant

since on or about March 5, 2021. This is not an action against the State. It is an action against a private company and its managing agents for misrepresenting to Plaintiff and to CDCR that HOPE's treatment program offers an individualized, achievable path to completion when in fact HOPE applies a uniform blanket retention policy that makes completion impossible for any participant prior to parole discharge—a policy the Superior Court of San Mateo County judicially condemned in *In re Dwyer*, No. SC-080355A (Mar. 20, 2023) (Hill, J.), and that violates 15 CCR § 3574(f)(1) effective April 17, 2025.

PARTIES

1. Plaintiff Brendan Ngehsi Newanforbi (**Plaintiff**) is, and at all relevant times was, a natural person residing in San Joaquin County, California, supervised out of the Stockton 2 GPS parole unit, and a holder of a Class A Commercial Driver's License (**CDL**).

2. Defendant Katie Palacios is, and at all relevant times was, the site Director of the HOPE Stockton facility located at 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207, a Licensed Marriage and Family Therapist (LMFT License No. 44555), and a CASOMB-certified provider. As site Director, Palacios held supervisory authority over treatment determinations, phase-progression decisions, treatment-completion characterizations, and the form and content of communications transmitted to CDCR concerning Plaintiff. Palacios is sued individually and as a *managing agent* of HOPE within the meaning of Civil Code § 3294(b).

3. Defendant HOPE Psychotherapy, Inc., d/b/a HOPE Program, is a California corporation that, at all relevant times, has been a CASOMB-certified provider contracting with CDCR's Division of Adult Parole Operations (**DAPO**) to deliver mandatory sex-offender treatment under Penal Code § 3008 and 15 CCR § 3574.

4. Defendants DOES 1-10 are HOPE clinicians, supervisors, managing agents, and

executives whose true names are presently unknown to Plaintiff. Plaintiff is informed and believes each Doe Defendant is responsible for the wrongs alleged and will amend this complaint to state their true names and capacities when ascertained. At all times, each Defendant was the agent, employee, joint venturer, alter ego, and/or co-conspirator of every other Defendant, acting within the course and scope thereof with the consent, knowledge, and ratification of every other Defendant.

JURISDICTION AND VENUE

1. This Court has subject-matter jurisdiction. The amount in controversy exceeds $25,000, exclusive of interest, costs, and equitable relief. Venue is proper in San Joaquin County under CCP §§ 395 and 395.5: the wrongful acts and omissions occurred at the HOPE Stockton facility and at the Stockton parole unit; Palacios works in San Joaquin County; and Plaintiff resides in San Joaquin County.

GENERAL ALLEGATIONS

A. Statutory and Regulatory Framework

1. Penal Code § 3008(d)(2) requires that a sex-offender parolee *successfully complete a sex offender management program* as a condition of parole, and that *[t]he length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court.* The statute thus sets one year as the floor and the entire parole period as the ceiling, with completion to be determined by individualized clinical judgment. Effective April 17, 2025, 15 CCR § 3574(f)(1) provides that *[t]reatment completion and parole discharge are legally separate decisions.*

2. CASOMB's Treatment Completion Guidelines (2018) require *structured clinical judgment* considering risk level, criminogenic needs, individual factors, predicted trajectory, and containment-team judgment, and direct that the determination be a *YES-or-NO conclusion about whether treatment has been completed.* CASOMB's Maintenance and Aftercare Guidelines (Sept. 2024) require that *discharge planning starts at intake* and that *the final determination regarding whether an individual has 'completed' treatment should never come as a surprise to the client.*

B. HOPE's Blanket Retention Policy

1. Notwithstanding the foregoing, HOPE applies a blanket retention policy under which no parolee is determined to have *completed* treatment prior to discharge from parole. HOPE's four-phase structure (preparatory, core, maintenance, aftercare) is designed so that aftercare is treated as mandatory for parolees and only *voluntary* post-discharge. The structure makes completion impossible while a participant remains on parole, regardless of clinical progress, compliance, or risk score.

2. HOPE's policy was judicially condemned in *In re Dwyer*, No. SC-080355A (San Mateo County Super. Ct., March 20, 2023) (Hill, J.). HOPE's own Executive Director of Clinical Training, Dr. Cristina Loree, testified under oath that HOPE requires continuous treatment for all parolees until discharge. The court found the policy *vitiates the Legislature's directive* under Penal Code § 3008(d)(2) and exercised its statutory authority to fix the petitioner's required treatment as terminating short of the full parole term. Plaintiff requests judicial notice of *Dwyer* under Evidence Code §§ 452(d), 453. The *Dwyer* order is a San Mateo County habeas corpus decision that was not provided to Plaintiff by HOPE or CDCR and was not otherwise readily accessible to Plaintiff.

3. HOPE knew of *Dwyer* no later than March 20, 2023, because its own Executive Director of Clinical Training was the witness whose sworn testimony established the policy.

Despite *Dwyer*—and despite the April 17, 2025 effective date of 15 CCR § 3574(f)(1)—HOPE, under Palacios's direction at the Stockton facility, continued to apply the identical blanket retention policy to Plaintiff in 2023, 2024, 2025, and through the most recent containment team meeting on or about February 2026. HOPE's continuation of the policy is driven by financial incentive: each retained parolee generates approximately $10,600 annually in baseline group and CTM revenue; there is no fee for completion; discharge terminates the revenue.

C. Direct Misrepresentations to Plaintiff

1. On or about March 5, 2021, when Plaintiff was directed to enroll at HOPE, HOPE represented to Plaintiff, through its intake clinician at HOPE's Stockton facility, its intake materials, treatment contract, and verbal orientation, that HOPE would maintain an individualized written treatment plan, assess Plaintiff's progress against that plan, and move Plaintiff through phases based on individualized clinical performance, and that if Plaintiff complied with treatment and completed assignments he would have a meaningful, achievable path to completion during his parole term.

2. From in or about 2021 through 2023, Plaintiff's assigned HOPE clinician was Pamela Akins (**Akins**). On or about November 2022, during an in-person HOPE group session at HOPE's Stockton facility (5403 N. Pershing Ave., Suite 200, Stockton, CA 95207), in the presence of other group participants, Akins represented to Plaintiff that the HOPE program had objective, individualized criteria for phase advancement and treatment completion; that Plaintiff's progress would be assessed against those criteria; and that if Plaintiff completed the assigned work he would be able to complete treatment before the end of his parole term. Akins did not disclose, then or at any other time, that HOPE's actual policy is to retain every parolee in treatment until parole discharge regardless of clinical progress.

3. In or about January 2024, during a HOPE group session at the Stockton facility, a

HOPE clinician acting under the supervision and direction of Palacios stated in substance that individuals are *titrating* and *completing the HOPE program,* and that participants who complete their assignments and comply with treatment can titrate and complete. This representation conveyed that sex-offender parolees can and do complete HOPE's program prior to discharge from parole. The clinician did not disclose that HOPE's blanket retention policy forecloses completion for all parolees prior to discharge, regardless of their individual progress.

4. On or about June 2024, during an individual session at HOPE's Stockton facility, a HOPE clinician acting under the supervision and direction of Palacios stated to Plaintiff that she had personally checked with Defendant Palacios regarding Plaintiff's previously submitted and completed homework packets and was informed by Palacios that no homework completed by Plaintiff had ever been found in HOPE's records. The clinician communicated this to Plaintiff as a factual determination—that HOPE possessed zero record of Plaintiff ever having completed any assigned homework.

5. The statement made in June 2024 was false. Plaintiff had, in fact, consistently and fully completed all assigned homework modules and submitted them to HOPE staff throughout his enrollment since 2021. As Palacios herself later admitted in a recorded group session in August 2025 (see paragraph 22 below), HOPE routinely loses client homework packets. The assertion that *no homework had ever been found as completed* was not an accurate reflection of Plaintiff's performance but rather a product of HOPE's own disorganized recordkeeping, falsely attributed to Plaintiff as a failure to complete work.

6. At no time during intake, group sessions, individual sessions, or containment-team meetings did HOPE, Palacios, Akins, or any other HOPE clinician disclose to Plaintiff that HOPE maintained a blanket retention policy under which no parolee would ever be determined to have completed treatment prior to discharge from parole. The existence of this policy was intentionally concealed from Plaintiff.

D. Misrepresentations to CDCR and Homework Mischaracterizations

1. From 2021 through the present, in connection with each semi-annual Containment Team Meeting (**CTM**)—held on or about February and August of each year through the most recent CTM in February 2026—Palacios prepared and submitted treatment-status content to CDCR using CDCR Form 3043 (Containment Team Meeting / Earned Discharge Consideration Committee) and contributed to CDCR's Discharge Review Report (CDCR Form 1502-DR).

2. Palacios's CTM submissions included representations in substance that *Subject partially participates in discussion. Subject has partially completed homework packets. Subject demonstrates partial understanding of the subject material. Subject is fixated on lawsuits instead of subject material,* and characterized Plaintiff's status as *not completed* sex-offender treatment. These submissions were transmitted at each CTM cycle to Plaintiff's parole agents of record, including without limitation Agents Magana, Arestad, Acierto, Urrea, and Long Moua (Badge 7472), and to supervising parole agents including Agent Gary Noguchi (Badge 7284).

3. In fact, by the time of each CTM from at least November 2022 forward, Plaintiff had completed all assigned homework packets for the relevant CTM periods and timely submitted them to HOPE staff. On or about August 2025, during a HOPE group session at the Stockton facility that was recorded on video, Palacios stated in substance that HOPE *routinely* loses client homework packets. Palacios's admission confirms that her repeated CTM characterizations of Plaintiff as having only *partially completed homework packets* reflected HOPE's loss or mishandling of completed work, not Plaintiff's performance, and were false.

4. The November 2025 1502-DR (signed by Agent Moua on November 14, 2025 and Unit Supervisor Noguchi on November 19, 2025) incorporated HOPE's reporting expressly: *Subject's Sex Offender Treatment Progress (HOPE): 10/15/2024 Stable 6/LSCMI 5. Level 2 below average*

Risk ... Core Phase of treatment and working in Block 1 Module 4/7 ... HOPE SOT recommends continued treatment ... Continued DAPO supervision is warranted and recommended. The agent recommendation was *Discharge Denied/No Action.*

5. Palacios's representations to CDCR—including that Plaintiff had only *partially completed homework packets* and had *not completed* treatment—were false. They were the predetermined output of HOPE's blanket retention policy, and of HOPE's own routine loss of homework packets, not the product of individualized clinical assessment of Plaintiff's actual performance. Palacios knew, by reason of her position as site Director, Dr. Loree's testimony in *Dwyer*, and her own August 2025 admission on camera that HOPE routinely loses homework, that HOPE's policy forecloses completion for every participant prior to discharge and that Plaintiff's homework was complete.

E. CDCR's Reliance and But-For Causation

1. CDCR justifiably relied on HOPE's representations because (a) HOPE was the sole CASOMB-certified provider serving the Stockton region, with no alternative provider available to Plaintiff, and (b) DAPO institutionally defers to the treatment provider's determinations of progress and completion. Plaintiff's parole agents Magana, Arestad, Acierto, Urrea, and Moua have each separately stated to Plaintiff, in substance, that *HOPE controls*—that without *sex-offender completion* there will be *no discharge from parole.* The November 2025 1502-DR confirms this institutional deference on its face by relying on HOPE's recommendation as the treatment-based predicate for *Continued DAPO supervision.* But for HOPE's non-completion characterization and its repeated false *partial homework* reports, the November 2025 discharge review would not have had the treatment-based justification on which it expressly rested.

F. August 2025 Retaliatory CTM Statements

1. In or about August 2025, during a CTM held at a CDCR parole office in Stockton, in the presence of Agent Chow, Agent G. Noguchi (Badge 7284), Agent A. Derrick (Badge 6910), and a then-supervising parole agent (now retired), Palacios stated, in substance, that Plaintiff was *disruptive during HOPE group sessions,* a *ringleader,* that his behavior was *abhorrent,* and that he was *often disrespectful to [her] staff,* and characterized Plaintiff's respectful demeanor at the CTM as an *acting job.* Palacios further stated, in substance: *because when you start complaining then the other guys chime in.* These statements were false. Plaintiff's conduct in group consisted of raising legitimate concerns about prolonged retention, the routine loss of completed homework, and disruption from repeated clinician turnover and group resets. Other participants who independently shared similar concerns were falsely attributed to Plaintiff's *influence.*

G. Plaintiff's Specific Economic Harm

1. Plaintiff is a Class A CDL holder. Commercial trucking—particularly long-haul and regional routes—requires the ability to travel without geographic restrictions, maintain flexible schedules, and operate free from monitoring equipment and mandatory treatment attendance. Plaintiff repeatedly informed Palacios, Akins, and other HOPE staff, during individual and group sessions in 2021 through 2026, of his CDL status and of specific employment relationships that conflicted with HOPE's mandatory schedule. Among other communications: (a) in or about January 2022, after Plaintiff missed a HOPE group session in connection with a long-haul assignment for United Road, his then-parole agent (Arestad) threatened to violate Plaintiff's parole and incarcerate him for missing the HOPE session, and Plaintiff was thereby forced to resign from United Road; and (b) in or about February 2022, Plaintiff disclosed to Akins that he was working for Keurig Dr Pepper as a CDL driver and identified specific bi-weekly days on which he was required to be off-duty in order to attend HOPE sessions.

2. Plaintiff had active, recurring economic relationships with the following commercial carriers, among others: United Road, Keurig Dr Pepper, Tiger Lines LLC, US-1 Shorthaul, Lazer

Spot, Inc., and Centerline Drivers. Plaintiff's federal W-2 wage statements document the existence and recurring nature of these relationships. As a result of HOPE's non-completion characterizations and the resulting parole-supervision conditions (mandatory HOPE attendance, GPS, curfew, and geographic restrictions), Plaintiff was forced to resign from his United Road position in January 2022 and was forced to turn down specific dispatches that fell on HOPE group-session days. The year-by-year difference between Plaintiff's but-for CDL earning capacity ($72,000/year) and his actual, supervision-suppressed W-2 earnings—$32,447 lost in 2022, $60,855 lost in 2023, and $16,106 lost in 2024—totals no less than $109,408 for 2022-2024, with continuing losses accruing thereafter at approximately $6,000 per month.

3. HOPE owed Plaintiff an independent duty of care. Plaintiff was a captive client of HOPE: HOPE was the sole CASOMB-certified provider in his region; Plaintiff had no alternative provider; CDCR delegated to HOPE the de facto exclusive authority to make the treatment-status determinations on which discharge decisions rested; and HOPE knew its representations would be communicated to and acted upon by CDCR. Under these circumstances, HOPE undertook a special relationship within the meaning of *Giraldo v. California Dep't of Corrections & Rehabilitation* (2008) 168 Cal.App.4th 231, and assumed an independent duty to perform its assessment and reporting functions with reasonable, individualized clinical care.

FIRST CAUSE OF ACTION

(Fraud / Intentional Misrepresentation — Against All Defendants)

1. Plaintiff incorporates paragraphs 1 through 27 as though fully set forth herein.

2. Defendants made the following misrepresentations of material fact directly to Plaintiff:

a. **Intake Representations (March 2021):** Through intake materials, treatment

contract, and verbal orientation at HOPE's Stockton facility, HOPE represented that it would maintain an individualized written treatment plan for Plaintiff, assess Plaintiff's progress against the plan, and move Plaintiff through phases based on individualized clinical performance, conveying that there was a meaningful, achievable path to completion during Plaintiff's parole term.

b. **Akins Group Representation (November 2022):** On or about November 2022, during an in-person group session at HOPE's Stockton facility, clinician Pamela Akins represented to Plaintiff that HOPE applied objective, individualized criteria to phase advancement and treatment completion and that Plaintiff had a meaningful, achievable path to completion.

c. **January 2024 Group Representation:** On or about January 2024, during a group session at HOPE's Stockton facility, a HOPE clinician acting under the supervision and direction of Palacios represented to Plaintiff and other group participants that *individuals are titrating and completing the HOPE program,* falsely conveying that parolees enrolled at HOPE can and do successfully complete the program and obtain a treatment-completion determination while still on parole.

d. **June 2024 Individual Session Representation:** On or about June 2024, during an individual session at HOPE's Stockton facility, a HOPE clinician acting under the supervision and direction of Palacios falsely informed Plaintiff that she had checked with Defendant Palacios and that no homework completed by Plaintiff had ever been found in HOPE's records.

e. **CTM 'Partial Homework' Representations (November 2022-Present):** Beginning no later than November 2022, and continuing at each semi-annual CTM through at least February 2026, Palacios represented in CTM documentation and related

communications to CDCR that Plaintiff had *partially completed homework packets,* when in fact Plaintiff had completed all assigned homework.

3. Defendants' misrepresentations were directed both to Plaintiff, to induce his continued participation and forbearance from legal action, and to CDCR, to induce continued parole supervision based on a false portrayal of Plaintiff's performance and completion status.

4. Defendants further intentionally concealed from Plaintiff the existence and operation of HOPE's blanket retention policy, under which no parolee can be determined to have completed treatment prior to parole discharge regardless of clinical progress, and the fact that HOPE's internal policy—not Plaintiff's individual performance—precluded completion. Defendants also concealed that HOPE routinely lost homework packets, while attributing *partial completion* to Plaintiff.

5. The foregoing representations and omissions were false and material. HOPE's actual operating policy was, and is, the blanket retention policy judicially condemned in *Dwyer*; no parolee is determined to have completed treatment prior to discharge from parole. Plaintiff's homework packets were in fact fully completed and submitted; any absence from HOPE's files was the product of HOPE's own loss or mishandling, not Plaintiff's non-performance. Defendants knew these representations were false: HOPE's blanket retention policy was admitted under oath by HOPE's Executive Director of Clinical Training in *Dwyer* in March 2023; the Superior Court found that the policy *vitiates the Legislature's directive* in Penal Code § 3008(d)(2); Palacios, as Stockton site Director, implemented and oversaw that policy with full knowledge of its operation; and Palacios personally admitted in August 2025 that HOPE routinely loses client homework packets.

6. Defendants made the misrepresentations and concealments with the intent that Plaintiff would rely on them by enrolling in and remaining in HOPE's program, continuing to complete

homework and attend sessions even after years of retention and phase looping, structuring his CDL employment around HOPE's schedule, refraining from seeking alternative providers, and foregoing earlier judicial relief under Penal Code § 3008(d)(2). Defendants further intended that CDCR would rely on HOPE's *partial homework* and *non-completion* characterizations in CTM reports and discharge reviews so that Plaintiff would remain in treatment and on parole, preserving HOPE's fee-for-service revenue from his mandated participation.

7. Plaintiff justifiably relied on Defendants' misrepresentations and omissions as follows:

a. **Enrollment and Continued Participation:** Plaintiff enrolled in HOPE and continuously participated from March 2021 through the present, attending twice-weekly groups, individual sessions, and semi-annual CTMs, incurring travel and time costs, rather than seeking referral to an alternative CASOMB-certified provider or pursuing earlier judicial relief under Penal Code § 3008(d)(2).

b. **Forbearance from Legal Action (2022-2024):** By November 2022, Plaintiff had been enrolled in HOPE for more than one year—the statutory minimum treatment period under Penal Code § 3008(d)(2)—and was legally eligible to seek judicial review of his continued retention or file a habeas petition challenging the absence of an individualized completion determination. Plaintiff considered doing so but reasonably refrained from filing in 2022, 2023, and the first half of 2024 because Akins's November 2022 representations, the January 2024 group representations, and HOPE's ongoing assurances led Plaintiff to believe he was progressing along a defined path to completion and that continuing to participate, rather than litigating, was the appropriate route to discharge. Plaintiff understood comments about *partial completion* of homework as indicating he needed to do more or better work, not that HOPE had lost his completed packets. Plaintiff did not discover the impossibility of completion until he reviewed the *Dwyer* order and related materials in or about late 2025; the *Dwyer* order is a San Mateo

County habeas corpus decision that was not provided to Plaintiff by HOPE or CDCR and was not otherwise readily accessible to him. Had Plaintiff known in November 2022 or January 2024 that completion was structurally impossible, he would have filed for judicial relief at that time rather than waiting until 2026.

c. **Response to June 2024 Representation:** In justifiable reliance on the false statement that HOPE had no record of his completed homework, Plaintiff redoubled his efforts to maintain personal copies of all submitted homework, continued to submit all future assignments believing the issue was a correctable documentation error on his part, and refrained from escalating his concerns to CDCR or filing a habeas petition in mid-2024. Had Plaintiff known the truth—that HOPE was losing his work and that the missing records were a result of HOPE's own systemic failures—he would have ceased this futile effort and pursued immediate judicial intervention.

d. **CDL Employment Sacrifices:** Plaintiff repeatedly informed Palacios, Akins, and other HOPE staff during individual and group sessions in 2021 through 2026 of his CDL status and of specific employment relationships that conflicted with HOPE's mandatory schedule. In reliance on Defendants' representations that adherence to the program would lead to completion and discharge, Plaintiff prioritized HOPE attendance over CDL employment opportunities. Specifically:

i. In or about January 2022, after Plaintiff missed a HOPE group session in connection with a long-haul assignment for United Road, his then-parole agent (Arrestad) threatened to violate Plaintiff's parole and incarcerate him for missing the HOPE session. Believing that strict compliance with HOPE's schedule was necessary to achieve completion and eventual discharge, Plaintiff was forced to resign from his United Road position.

ii. In or about February 2022, Plaintiff disclosed to Akins that he was working for Keurig Dr Pepper as a CDL driver and identified specific bi-weekly days on which he was required to be off-duty in order to attend HOPE sessions. Plaintiff accepted lower-earning, local routes and turned down long-haul work because he believed that strict adherence to HOPE's schedule would result in earlier completion and thus earlier lifting of GPS/curfew constraints.

e. **Continued Homework Submission:** Despite being told in June 2024 that no record of his homework existed, Plaintiff continued to complete and submit all assigned homework packets from June 2024 through the present, believing that his individual effort would be recognized and credited toward completion.

8. As a direct and proximate result of Defendants' fraud, Plaintiff remained in HOPE's program and on parole supervision longer than he otherwise would have; suffered denial of discharge in November 2025 based in substantial part on HOPE's *non-completion* and *partial homework* characterizations; lost at least $109,408 in CDL wages from 2022-2024 alone, with additional losses accruing at approximately $6,000 per month; incurred costs of compliance with the supervision conditions that HOPE's false reports caused to be imposed; and suffered severe emotional distress, including anxiety, humiliation, sleep disruption, and stigma associated with being trapped in a program he later learned was structurally incapable of certifying completion.

9. Defendants' conduct was malicious, oppressive, and fraudulent within the meaning of Civil Code § 3294. Defendants continued the blanket retention policy after *Dwyer* judicially condemned it in March 2023 and after the April 17, 2025 effective date of 15 CCR § 3574(f)(1); Palacios knowingly mischaracterized Plaintiff's homework and treatment status while admitting that HOPE routinely loses homework; and the wrongful acts were committed, authorized, and ratified by HOPE's *managing agents,* including Palacios as Stockton site Director with supervisory authority over treatment determinations and HOPE's Executive Director of Clinical

Training. Plaintiff is entitled to punitive damages.

SECOND CAUSE OF ACTION

(Negligence, Including Negligence Per Se — Against All Defendants)

1. Plaintiff incorporates paragraphs 1 through 36 as though fully set forth herein.

2. As alleged in paragraph 27, HOPE and Palacios undertook a special relationship with Plaintiff and assumed an independent duty of care, including duties to: (a) maintain an individualized written treatment plan; (b) assess Plaintiff's progress against objective clinical criteria; (c) accurately report Plaintiff's clinical status and homework completion to CDCR; (d) refrain from applying a blanket policy that forecloses completion; and (e) exercise reasonable care in maintaining and tracking client homework records.

3. **Negligence Per Se.** HOPE's blanket retention policy violated, and continues to violate, Penal Code § 3008(d)(2) (by converting the statutory ceiling into a mandatory floor) and 15 CCR § 3574(f)(1) (by collapsing legally separate decisions into one). These provisions were enacted to protect the class of persons to which Plaintiff belongs (parolees in mandatory sex-offender treatment) from the kind of harm that occurred here (indefinite, non-individualized retention with attendant deprivations of liberty and earning capacity). Evid. Code § 669. Defendants' failure to maintain accurate homework records and their false reporting of *partial completion* further violated the standard of care applicable to licensed clinical professionals.

4. Defendants breached these duties as alleged in paragraphs 9-11, 15-16, 19-22, and 24. Defendants' breaches were a substantial factor in causing Plaintiff harm: parole agents and supervisors expressly relied on HOPE's *non-completion* characterization in the 1502-DR (*HOPE SOT recommends continued treatment ... Continued DAPO supervision is warranted and*

recommended); Plaintiff was forced to resign from United Road and to turn down specific dispatches; and Plaintiff sustained measured wage losses of no less than $109,408 for 2022-2024 with continuing losses, costs of compliance, and severe emotional distress.

THIRD CAUSE OF ACTION

(Intentional Infliction of Emotional Distress — Against All Defendants)

1. Plaintiff incorporates paragraphs 1 through 40 as though fully set forth herein.

2. Defendants engaged in extreme and outrageous conduct, including:

a. The continued, knowing application to Plaintiff of a blanket retention policy that had been judicially condemned in *Dwyer* in March 2023 and that, as of April 17, 2025, violates 15 CCR § 3574(f)(1);

b. The false characterization to CDCR of Plaintiff's status as *not completed* with knowledge that the characterization was a policy output, not a clinical judgment, and with knowledge that CDCR would rely on it to deny discharge;

c. The repeated false reporting to CDCR that Plaintiff had only *partially completed homework packets,* when Defendants knew Plaintiff had completed all assignments and that HOPE routinely lost client packets;

d. The June 2024 false statement that no record of Plaintiff's completed homework existed, which was calculated to cause Plaintiff to believe his years of effort had been futile and that he bore responsibility for HOPE's recordkeeping failures; and

e. Palacios's August 2025 CTM statements falsely accusing Plaintiff of being *disruptive,* a *ringleader,* and *abhorrent,* made in retaliation for Plaintiff's protected complaints, in front of his parole agents, during a meeting that determined his liberty.

3. Defendants' conduct was directed at Plaintiff and was intentional and/or undertaken with reckless disregard of the probability that Plaintiff would suffer severe emotional distress. Defendants knew that Plaintiff's liberty depended on HOPE's characterizations and knew that falsely reporting his progress, falsely denying the existence of his completed work, and retaliating against him in front of his parole agents would foreseeably cause severe distress.

4. As a direct and proximate result, Plaintiff suffered severe emotional distress, including but not limited to anxiety, depression, feelings of helplessness, and mental anguish. Plaintiff is entitled to compensatory and punitive damages.

FOURTH CAUSE OF ACTION

(Intentional Interference with Prospective Economic Advantage — Against All Defendants)

1. Plaintiff incorporates paragraphs 1 through 44 as though fully set forth herein.

2. **Existing economic relationships with probability of future benefit.** Plaintiff had active, recurring economic relationships with the following commercial carriers: United Road, Keurig Dr Pepper, Tiger Lines LLC, US-1 Shorthaul, Lazer Spot, Inc., and Centerline Drivers. Plaintiff possessed the required Class A CDL credential, and CDL drivers were and are in high demand. Federal W-2 wage statements document the existence and recurring nature of these relationships.

3. **Defendants' knowledge.** Defendants had actual knowledge of these specific economic

relationships through Plaintiff's intake forms, treatment participation, and individual and group sessions, including Plaintiff's February 2022 disclosure to Akins of his Keurig Dr Pepper position and bi-weekly off-day requirements, and Plaintiff's January 2022 communications regarding the United Road long-haul assignment.

4. **Independently wrongful conduct.** Defendants engaged in independently wrongful conduct, including (a) the fraud alleged in the First Cause of Action; (b) the violations of Penal Code § 3008(d)(2) and 15 CCR § 3574(f)(1) alleged in paragraph 39; (c) the false defamatory CTM statements alleged in paragraph 24; and (d) the false reporting of *partial homework completion* and denial of completed homework records.

5. **Intent and disruption.** Defendants' wrongful conduct was designed to disrupt Plaintiff's economic relationships, or, in the alternative, was undertaken with knowledge that disruption was substantially certain given Defendants' knowledge of the supervision conditions that would result. Plaintiff was forced to resign from his United Road position in January 2022, was forced to turn down specific dispatches that conflicted with mandatory HOPE sessions, and was unable to accept long-haul positions requiring unrestricted travel. Plaintiff has suffered economic damages of no less than $109,408 for 2022-2024 with continuing losses.

FIFTH CAUSE OF ACTION

(Violation of Bane Act, Civ. Code § 52.1 — Against All Defendants)

1. Plaintiff incorporates paragraphs 1 through 49 as though fully set forth herein.

2. Plaintiff possesses statutory rights under Penal Code § 3008(d)(2)—the right to a non-arbitrary, individualized clinical determination of treatment length and completion based on the criteria the Legislature established—and under 15 CCR § 3574(f)(1)—the right to have

treatment-completion and parole-discharge maintained as legally separate decisions.

3. Defendants interfered, or attempted to interfere, with these rights through threats, intimidation, or coercion, including:

a. The practical coercion exerted through HOPE's exclusive gatekeeping role and HOPE's knowledge that its *non-completion* and *partial homework* characterizations would result in continued GPS monitoring, curfew, and threat of parole violation;

b. Palacios's August 2025 retaliatory and defamatory CTM statements, made with the foreseeable consequence of intimidating Plaintiff into curtailing his protected expression of complaints about the program; and

c. The coercive linkage between Plaintiff's acceptance of the non-individualized blanket retention policy and his avoidance of parole-violation consequences.

4. Palacios's August 2025 statements constituted intimidation because a reasonable person in Plaintiff's position would have been deterred from exercising his right to complain about treatment conditions for fear of adverse parole consequences. Plaintiff is entitled to actual damages, statutory damages of $25,000 for each violation, attorney's fees and costs to the extent permitted by Civil Code § 52.1(i), and injunctive relief.

SIXTH CAUSE OF ACTION

(Declaratory Relief — Against All Defendants)

1. Plaintiff incorporates paragraphs 1 through 53 as though fully set forth herein.

2. An actual controversy has arisen and now exists between Plaintiff and Defendants concerning the lawfulness of HOPE's blanket retention policy as applied to Plaintiff. Plaintiff contends, and Defendants deny, that HOPE's blanket retention policy—under which no parolee can be determined to have *completed* treatment prior to parole discharge regardless of clinical progress—is unlawful as applied to Plaintiff because it (a) converts the durational ceiling of Penal Code § 3008(d)(2) into a mandatory floor; (b) violates 15 CCR § 3574(f)(1)'s requirement that treatment completion and parole discharge be maintained as legally separate decisions; and (c) violates CASOMB's Treatment Completion Guidelines (2018) and Maintenance and Aftercare Guidelines (Sept. 2024) requirements of individualized assessment.

3. The controversy is capable of repetition yet evading review as to Plaintiff because HOPE continues to apply the same policy to Plaintiff and will submit further treatment characterizations to CDCR in future discharge reviews. Plaintiff seeks a judicial declaration of his rights and Defendants' duties, and a permanent injunction requiring HOPE to conduct an individualized assessment of Plaintiff's eligibility for treatment completion based on published, objective clinical criteria, free from the blanket retention policy.

SEVENTH CAUSE OF ACTION

(Violation of Business & Professions Code § 17200 — Unfair Competition Law — Against All Defendants)

1. Plaintiff incorporates paragraphs 1 through 56 as though fully set forth herein.

2. Defendants' business practice of applying a blanket retention policy that violates Penal Code § 3008(d)(2) and 15 CCR § 3574(f)(1) constitutes an unlawful business act under Business & Professions Code § 17200. Defendants' practice of falsely reporting *partial homework completion* and failing to maintain accurate client records while attributing missing records to clients constitutes an additional unlawful and unfair business act. Said practices are also unfair

because the financial incentive to retain clients indefinitely outweighs any legitimate clinical justification, and the harm to Plaintiff (loss of liberty and wages) outweighs any utility of the policy. The harm to consumers and the public from a policy that makes treatment completion structurally impossible and from systematic misreporting of client progress is substantial and not outweighed by countervailing benefits.

3. As a direct and proximate result of Defendants' unlawful and unfair business practices, Plaintiff has lost money and property in the form of lost CDL wages, costs of compliance with unlawful supervision conditions, and other economic harm. Plaintiff seeks restitution of all monies wrongfully obtained or retained by HOPE as a result of this policy, and an injunction prohibiting further application of the blanket retention policy to Plaintiff and to all similarly situated parolees.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants HOPE Psychotherapy, Inc., Katie Palacios, and DOES 1-10, jointly and severally, as follows:

A. Compensatory damages according to proof, including economic damages of no less than $109,408 for 2022-2024 with continuing losses; costs of compliance with unlawful supervision conditions; and non-economic damages for emotional distress and loss of liberty;

B. Statutory damages under Civil Code § 52.1;

C. Punitive damages under Civil Code § 3294 in an amount sufficient to punish and deter;

D. Declaratory relief as set forth in the Sixth Cause of Action;

E. A permanent injunction requiring HOPE to conduct a bona fide, individualized assessment of Plaintiff's eligibility for treatment completion based on published, objective clinical criteria;

F. Restitution of all monies wrongfully obtained or retained by Defendants as a result of the unlawful and unfair business practices alleged herein;

G. Reasonable attorney's fees and costs as permitted by Civil Code § 52.1(i), Code of Civil Procedure § 1021.5, and any other applicable authority;

H. Prejudgment and postjudgment interest at the maximum legal rate;

I. Costs of suit; and

J. Such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable.

Dated: April 22, 2026

BRENDAN NGEHSI NEWANFORBI

EXHIBIT B

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Attorneys for Defendants
KATIE PALACIOS and HOPE PROGRAM

FILED
SUPERIOR COURT SAN JOAQUIN
2026 MAY 22 P 1:45
STEPHANIE BOHRER, CLERK
BY MIA STIPE
DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive,

Defendants.

Case No.: STK-CV-UF-2026-0001032

DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S NOTICE OF DEMURRER AND DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT

Date: June 25, 2026
~~**July 7, 2026**~~
July 15, 2026
Time: 9:00 a.m.
Dept.: 10A

Complaint Filed: February 10, 2026
Trial Date: TBD

TO ALL PARTIES HEREIN AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on _____, 2026 at ____ .m., or as soon thereafter as the matter may be heard in Department ___ of the above-entitled court, located at Defendants KATIE PALACIOS and HOPE PROGRAM will and hereby does generally demurrer to Plaintiff's entire First Amended Complaint ("FAC"), pursuant to California Code of Civil Procedure sections 430.10(e), due to the FAC's failure to state facts sufficient to constitute a cause of action.

This Demurrer is based upon this Notice of Demurrer, the Memorandum of Points and

FILE BY FAX

Authorities, Defendants' Request for Judicial Notice, and upon the pleadings, records, and files herein, and upon such oral and documentary evidence as may be presented at the hearing of this motion.

DEMURRER

Defendants KATIE PALACIOS and HOPE PROGRAM demurs to the FAC on the following grounds:

- Demurrer to the First Cause of Action for Fraud/Intentional Misrepresentation due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Second Cause of Action for Negligence due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Third Cause of Action for Intentional Infliction of Emotional Distress due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Fourth Cause of Action for Intentional Interference with Prospective Economic Advantage due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Fifth Cause of Action for violation of the Bane Act due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Sixth Cause of Action for Declaratory Relief due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Seventh Cause of Action for violation of Business & Professions Code § 17200 due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the entire FAC due to failure to allege exhaustion.

MEET AND CONFER

Code of Civil Procedure section 430.41, subdivision (a) states that before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer. As outlined in the Declaration of Blaze Van Dine, filed in support, the parties met and conferred by telephone more than 5 days before date Defendants' responsive pleading was due. (Decl. Van Dine at ¶ 2.) Despite a good faith effort, the

parties did not reach an agreement resolving the objections raised in the demurrer. (Decl. Van Dine at ¶ 3.)

TENTATIVE RULING

The Stockton courthouse uses the tentative ruling system for law and motion matters. Tentative rulings are posted electronically by 1:30 PM the day before the hearing. To view a tentative ruling, visit Tentative Rulings under Online Services and follow the prompts.

Dated: May 22, 2026

SIMS, LAWRENCE & BROGHAMMER

By: Cynthia G. Lawrence
CYNTHIA G. LAWRENCE
BRYAN L. MALONE
BLAZE VAN DINE
Attorneys for Defendants,
KATIE PALACIOS and
HOPE PROGRAM

MEMORANDUM OF POINT AND AUTHORITIES

I. BACKGROUND

Plaintiff commenced this action on February 10, 2026. Plaintiff is proceeding on a First Amended Complaint ("FAC") filed on April 22, 2026. The FAC alleges that Plaintiff is a California Department of Corrections and Rehabilitation ("CDCR") parolee. (FAC at 1:28.[1]) Plaintiff has been participating in Sex Offender Management with Defendant HOPE Psychotherapy, Inc., ("HOPE"), since March 5, 2021, at the Stockton facility. (*Id.* at 1:24-2:1.) Defendant KATIE PALACIOS ("PALACIOS") is HOPE's site Director at the Stockton facility. (*Id.* at 2:15-17.)

In June of 2024, a HOPE clinician informed Plaintiff that "no homework completed by Plaintiff had ever been found in HOPE's records." (*Id.* at 6:8-12.) Plaintiff, however, had completed all homework modules and submitted them to HOPE. (*Id.* at 6:16-18.) In August of 2025, PALACIOS admitted that "HOPE routinely loses client homework packets." (*Id.* at 6:18-19.)

Moreover from 2021, to the present "in connection with each semi-annual Containment Team Meeting (CTM) . . . PALACIOS prepared and submitted treatment-status content to CDCR using CDCR Form 3034 (Containment Team Meeting/Earned Discharge Consideration Committee)[.]" (*Id.* at 7:4-7.) PALACIOS also contributed to Plaintiff's "CDCR Discharge Review Report (CDRC Form 1502-DR)." (*Id.*at 7:4-8.)

Therein, PALACIOS stated with respect to Plaintiff, "*Subject partially participates in discussion. Subject has partially completed homework packets. Subject demonstrates partial understanding of the subject material. Subject is fixated on lawsuits instead of subject material* and characterized Plaintiff's status as *not completed* sex-offender treatment." (*Id.* at 7:10-13) (emphasis in original). These statements were transmitted to Plaintiff's parole agent of record—Magana, Arestad, Acierto, Urrea, and Long Moua—and to the supervising parole agent, which included Gary Noguchi. (*Id.* at 7:15-16.)

According to the FAC, PALACIOS's statements were false. (*Id*. at 8:5-6.) The statements were the result of "HOPE's blanket retention policy, and of HOPE's own routine loss of homework

[1] The FAC does not number paragraphs consecutively, accordingly Defendants have provided page and line citations.

packets, not the product of individualized clinical assessment of Plaintiff's actual performance." (*Id.* at 8:6-8.) In this regard, the FAC alleges that "HOPE applies a blanket retention policy under which no parolee is determined to have *completed* treatment prior to discharge from parole." (*Id.* at 4:1-2.) The FAC represents that "policy was judicially condemned in *In re Dwyer*, No. SC-080355A (San Mateo County Super Ct., March 20, 2023) (Hill, J.)." (*Id.* at 4:17.)

Moreover, the FAC alleges that "CDCR justifiably relied on HOPE's representations" as confirmed by a "November 2025 1502-DR." (*Id.* at 8:16:22.) "The November 2025 1502-DR confirms this institutional deference on its face by relying on HOPE's recommendation as the treatment-based predicate for *Continued DAPO supervision*." (*Id.* at 8:21-23.) (emphasis in original.)

According to the FAC, as a result of HOPE's blanket policy and loss of Plaintiff's homework, Plaintiff suffered economic damages from lost wages as a commercial long-haul truck driver. (*Id*. at 9:14-10:9.) The FAC alleges causes of action for: (1) fraud/intentional misrepresentation; (2) negligence; (3) intentional infliction of emotional distress; (4) intentional interference with prospective economic advantage; (5) violation of the Bane Act; (6) declaratory relief due; and (7) violation of Business & Professions Code § 17200.

II. LEGAL STANDARD

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof . . . the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc. § 430.30(a).) California Code of Civil Procedure section 430.10(e) provides that court may sustain a demurrer where the pleadings fail to state facts sufficient to constitute a cause of action. (*See* Code Civ. Proc. § 430.10(e); *see also Washington v. County of Contra Costa* (1995) 38 Cal.App.4th 890, 895.) Code of Civil Procedure section 430.10 requires that a complaint must contain "a statement of the facts constituting the cause of action in ordinary and concise language." (Code Civ. Proc. § 425.10.) If the complaint fails to state facts constituting a cause of action, the defendant can demur to the entire complaint and/or any particular causes of action therein. (Code Civ. Proc. § 430.50.)

California Code of Civil Procedure section 430.50(a) provides that "[a] demurrer to a complaint . . . may be taken to the whole complaint . . . or to any of the causes of action stated therein."

The function of a demurrer is to test the legal sufficiency of the pleading. (*Beauchene v. Synanon Foundation, Inc.* (1979) 88 Cal.App.3d 342, 346.) In considering a demurrer, the court treats "the demurrer as admitting all material facts properly pleaded, but no contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The court also considers matters that may be judicially noticed. (*Ibid*.) If the court sustains the demurrer, it is the plaintiff's burden to demonstrate in what manner the complaint can be amended to cure the defect. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.)

III. ARGUMENT

As set forth below, the FAC fails to set forth factual allegations establishing that either Defendant caused any harm to Plaintiff, fails to allege that Plaintiff exhausted available administrative remedies, that the FAC should have been brought as a habeas petition, and cannot state a Bane Act Claim. Thus, admitting all material facts properly pleaded in the FAC—but not contentions, deductions or conclusions of fact or law—the FAC fails to allege facts to sufficient to state a cause of action. Defendants' demurrer should, therefore, be granted.

A. The FAC Fails to Allege Facts Establishing Defendants Caused Plaintiff Harm

The FAC alleges that from 2021 through the present, Defendant PALACIOS "submitted treatment-status content to CDCR using CDCR Form 3043 (Containment Team Meeting/Earned Discharge Consideration Committee) and contributed to CDCR's Discharge Review Report (CDCR Form 1502-DR)." (FAC at 7:1-8.) PALCIOS's statements allegedly included the following: "Subject partially participates in discussion. Subject has partially completed homework packets. Subject demonstrates partial understanding of the subject material. Subject is fixated on lawsuits instead of subject material and characterized Plaintiff's status as not completed sex-offender treatment." (*Id.* at 7:10-13.)

PALACIOS's reports were "incorporated" into a November 2025, 1502-DR, resulting in an "agent recommendation" of "Discharge Denied/No Action." (*Id.* at 7:26-8:3.) This November 2025, 1502-DR was "signed by Agent Moua on November 14, 2025 and Unit Supervisor Noguchi on November 19, 2025[.]" (*Id.* at 7:26-27.) Pursuant to PALACIO's statements in the November 2025, 1502-DR "CDCR justifiably relied on HOPE's representations" in making its decision to deny

Plaintiff's discharge from parole supervision. (*Id.* at 8:16.) "But for HOPE's non-completion characterization and its repeated false partial homework reports, the November 2025 discharge review would not have had the treatment-based justification on which it expressly rested." (*Id.* at 8:23-25.)

However, even assuming the "non-completion characterization" and "partial homework reports" were false, there are no factual allegations to support the conclusory assertion that PALACIOS's statements that Plaintiff "partially participates in discussion," "demonstrates partial understanding of the subject material" and "is fixated on lawsuits instead of subject material" were not the result of an individualized clinical assessment of Plaintiff's actual performance. While Plaintiff may disagree with her conclusions, those are PALACIOS's opinions as a treating provider. The FAC provides no factual allegations to dispute her professional opinion.

The representation that Plaintiff "is fixated on lawsuits" is, in fact, supported by objective evidence subject to judicial notice. In this regard, it appears from a search of Westlaw that Plaintiff filed two other lawsuits in federal court that have resulted in opinions available on Westlaw. *See BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. K. BAROCIO, et al., Defendants.* (E.D. Cal., May 18, 2026, No. 2:26-CV-0191 DJC CSK P) 2026 WL 1389969, at *3 ("Plaintiff seeks prospective injunctive relief prohibiting CDCR from continuing to rely on the continuing discharge date ('CDD') or an order directing CDCR to recalculate plaintiff's credits consistent with the July 9, 2020 PPC policy, and money damages."); *Newanforbi v. California* (E.D. Cal., Apr. 20, 2026, No. 2:25-CV-1460-DC-CSK PS) 2026 WL 1067541, at *1 ("The incident also triggered a parole violation hold, and Plaintiff was incarcerated from the Friday of the incident until the following Wednesday before being brought to court for arraignment.").

Plaintiff has also filed two additional federal lawsuits concerning the allegations at issue in this lawsuit which have not yet resulted in opinions obtainable through Westlaw: *Newanforbi v. Agent A. Derrick, et al.*, (E.D. Cal., Jan. 5, 2026), and *Newanforbi v. HOPE Psychotherapy, Inc., et al.*, (E.D. Cal., Jan. 22, 2026, No. 2:25-cv-0195 TLN AC PS).[2] In support of this demurrer,

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[2] The number of state court actions Plaintiff has filed is unknown.

Defendants have provided a copy of the complaints filed in each of these actions and request judicial notice. (*See* Defs.' RJN., Ex. A-D.)

The Court may take judicial notice of the records any court of record of this state or of the United States. (Evid. Code § 452(e).) The Court shall take judicial notice of such records where requested by a party, the party provides sufficient notice to enable the adverse party to meet the request, and furnishes the court with sufficient information to enable it to take judicial notice. (Evid. Code § 453.) "[A] complaint otherwise good on its face is nevertheless subject to demurrer when facts judicially noticed render it defective." (*Legg v. Mutual Ben. Health and Acc. Ass'n* (1960) 184 Cal.App.2d 482, 488.)

Moreover, the November 2025, 1502 DR signed by Agent Moua on November 14, 2025 and Unit Supervisor Noguchi on November 19, 2025—which Plaintiff attached to his complaint filed in *Newanforbi v. HOPE Psychotherapy, Inc., et al.*, (E.D. Cal., Jan. 22, 2026, No. 2:25-cv-0195 TLN AC PS)—reflects numerous reasons for the "Discharge Denied/No Action" determination, including that Plaintiff "incurred multiple parole violations during this review period for failure to attend sex offender treatment and failure to charge Global Positioning System," was "unemployed and not attending school," and that "Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision." (*See* Def.'s RJN, Ex. D at 21-25.)

According to the FAC's own allegations the "November 2025 1502-DR" upon which CDCR allegedly relied reflected that Plaintiff had a "Stable" score of 6.[3] (FAC at 8:26-28.) That is consistent with the copy of the November 2025, 1502-DR form Plaintiff attached to his complaint filed in *Newanforbi v. HOPE Psychotherapy, Inc., et al.*, (E.D. Cal., Jan. 22, 2026, No. 2:25-cv-0195 TLN AC PS). (*See* Defs.' RJN, Ex. D at 24.)

California law explicitly provides that reasons to retain a supervised person in a sex offender management program "may include, but are not limited to . . . a Stable-2007 score of four or higher

[3] "The Department's contracted sex offender treatment providers (whom are trained and certified pursuant to PC section 290.09) shall utilize the supplemental risk assessments Level of Service/Case Management Inventory (LS/CMI) and STABLE-2007/ACUTE-2007 pursuant to PC section 290.04, as supplemental risk assessments to the Static-99R for adult male sex offenders. The LS/CMI will measure risk of future violence of adult male sex offenders, and the STABLE-2007/ACUTE-2007 will measure dynamic (changing) risk factors of adult male sex offenders." (Cal. Code Regs., tit. 15, § 3573(d).)

for males only" as well as "Parole violation(s), relevant to the supervised person's sex offense or adherence to the Conditions and Special Conditions of Parole associated with their sex offense, that occurred within one year of the review." (Cal. Code Regs., tit. 15, § 3574(f)(2)-(4).)

In this regard, even assuming the FAC's allegations were true, the FAC fails to state facts sufficient to constitute a cause of action, as the FAC does not even allege facts establishing that either Defendant caused Plaintiff any harm. In plain terms, the FAC's own factual allegations, as well as the judicially noticeable documents, establish that Plaintiff was retained in sex offender management treatment and parole supervision due to—at a minimum— his partial participation in discussions, his partial understanding of the subject material, his fixation on lawsuits instead of the subject material, his STABLE score, and his multiple parole violations.

Causation is a fundamental element for the FAC's claims for fraud, negligence, the intentional infliction of emotional distress, intentional interference with prospective economic advantage, and violation of Business & Professions Code § 17200. (*See Sandoval v. Pali Institute, Inc.* (2025) 113 Cal.App.5th 616, 629 ("IIED has three elements: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; [and] (3) ... actual and proximate causation of the emotional distress by the defendant's outrageous conduct."); *Stephenson v. Argonaut Ins. Co.* (2004) 125 Cal.App.4th 962, 974-975 ("Whatever form it takes, the injury or damage must not only be distinctly alleged but its causal connection with the reliance on the representation must be shown. Damage to be subject to a proper award must be such as follows the act complained of as a legal certainty."); *Vasquez v. Residential Investments, Inc.* (2004) 118 Cal.App.4th 269, 288 ("The plaintiff must show (1) the defendant's act or omission was a cause in fact of the plaintiff's injury, and (2) the defendant should be held responsible for negligently causing the plaintiff's injury."); *Roy Allan Slurry Seal, Inc. v. American Asphalt South, Inc.* (2017) 2 Cal.5th 505, 512 ("Intentional interference with prospective economic advantage has five elements: (1) the existence, between the plaintiff and some third party, of an economic relationship that contains the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentionally wrongful acts designed to disrupt the relationship; (4) actual disruption

of the relationship; and (5) economic harm proximately caused by the defendant's action.").)

As articulated above, the FAC does not simply fail to allege facts showing causation, it is established that the Defendants were not the cause of the harm alleged. Thus, even assuming *arguendo* the FAC's allegations that HOPE had a blanket retention policy and incorrectly reported that Plaintiff failed to complete homework were true: (1) Defendant PALACIOS's alleged statements that Plaintiff "partially participates in discussion," "demonstrates partial understanding of the subject material" and "is fixated on lawsuits instead of subject material" are not disputed by any factual allegations; (2) Parole Agent Moua and Parole Unit Supervisor Noguchi relied on Plaintiff's "multiple parole violations during this review period for failure to attend sex offender treatment and failure to charge Global Positioning System," that Plaintiff was "unemployed and not attending school," and that "Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision"; and (3) the FAC's allegations allege that Plaintiff's Stable score—in addition to the parole violation previously noted—provided a lawful reason to retain him in the sex offender management program pursuant to Cal. Code Regs., tit. 15, § 3574(f)(2)-(4).

The FAC fails to state facts constituting a cause of action. Defendants' demurrer should, therefore, be granted.

B. Failure to Exhaust Administrate Remedies

Penal Code § 3008 (d)(2) requires that persons convicted of a sex offense requiring registration pursuant to Penal Code §§ 290-290.02 on or after July 1, 2012, shall successfully complete a sex offender management program as a condition of parole. The length of the program shall be at least one year and up to the entire period of parole. (*Ibid.*) Within the lawful time frame, the precise length of a treatment program for any parolee is "determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court." (*Ibid.*)

"The sex offender management program is comprised of three treatment phases (Curriculum Phase, Maintenance Phase, Aftercare Phase), Containment Team Meetings (CTM), and polygraph examinations." (Cal. Code Regs., tit. 15, § 3574(a).) The purpose of a CTM "is to review the supervised person's treatment progress, dynamic risk factors, polygraph results, community reintegration, response to parole supervision, supervision category, and relevant individual case

factors to evaluate the supervised person's readiness for sex offender management program completion." (Cal. Code Regs., tit. 15, § 3574(a)(4).)

The Containment Team consists of at least "a contracted clinician, parole agent, unit supervisor or assistant unit supervisor, and the supervised person." (Cal. Code Regs., tit. 15, § 3574(a)(4)(A).) Typically, the Containment Team will be comprised of "a parole agent, unit supervisor or assistant unit supervisor, supervised person, contracted clinician (licensed psychiatrist, psychologist, or psychiatric social worker directly treating the supervised person), and victim advocacy representative." (*Ibid.*)

The Containment Team reviews the supervised person's program completion to determine the length of participation in the sex offender management program. (Cal. Code Regs., tit. 15, § 3574(e).) The determination to retain a supervised person in a sex offender management program is documented on CDCR Form 3043 Containment Team Meeting/Earned Discharge Consideration Committee, and is signed by the parole agent. (Cal. Code Regs., tit. 15, § 3574(f).)

Thereafter, the supervised person is subject to a discharge review by the parole agent, which "means a review of a supervised person's criminal history, and their adjustment and/or performance while under parole supervision for the purpose of rendering a decision as to whether or not a supervised person should be retained on parole supervision for another year or be discharged from parole supervision altogether." (Cal. Code Regs., tit. 15, § 3720(2).) A discharge review report is prepared on CDCR Form 1502. (Cal. Code Regs., tit. 15, § 3721.1.) A supervised person, such as Plaintiff, "may file a grievance regarding any mistake of fact contained in the discharge review report pursuant to the administrative remedies procedures provided in section 3480, *et seq*." (Cal. Code Regs., tit. 15, § 3723.)

Plaintiff, therefore, was authorized to file a written grievance regarding any perceived mistake of fact found in the November 2025, 1502 Discharge Review Report (or any Discharge Review Report for that matter). (*See* Cal. Code Regs., tit. 15, § 3481(a).) California law also explicitly provides that a "supervised person who wishes to submit a grievance . . . shall do so in writing to the Office of Grievances in the parole region where they are supervised." (Cal. Code Regs., tit. 15, § 3482(a)(2).) Thereafter, a "claimant who wishes to appeal a decision or remedy issued by an Office

of Grievances shall do so in writing by submitting a CDCR Form 602-2 . . . directly to the Office of Appeals by regular mail sent to the address indicated on the form or by electronic kiosk or tablet, if available." (Cal. Code Regs., tit. 15, § 3484(a).) Where the appeal is denied on the merits, the administrative remedies process is exhausted. (*See* Cal. Code Regs., tit. 15, § 3485(l)(5)(A).)

"'When an applicable statute, ordinance, or regulation provides an adequate administrative remedy, a party must exhaust it before seeking judicial relief.'" (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1023 (quoting *Plantier v. Ramona Municipal Water Dist.* (2017) 12 Cal.App.5th 856, 865).) "Where administrative remedies exist, California courts usually will not have subject matter jurisdiction over a dispute until the administrative tribunal has made a final determination." (*Foster*, *supra*, 61 Cal.App.5th at 1023.) Exhaustion is required "even when seeking money damages unavailable in the administrative process." (*Wright v. State of California* (2004) 122 Cal.App.4th 659, 668.)

"A complaint is vulnerable to demurrer on administrative exhaustion grounds when it fails to plead either that administrative remedies were exhausted or that a valid excuse exists for not exhausting." (*Parthemore v. Co*l (2013) 221 Cal.App.4th 1372, 1379.) Here, the FAC fails to allege either that administrative remedies were exhausted or that a valid excuse exists for not exhausting. Accordingly, Defendants' demurrer should be granted.

C. Petition for Writ of Habeas Corpus

After exhausting the available administrative remedies, a "petition for a writ of habeas corpus can be used to challenge a parole restriction." (*In re David* (2012) 202 Cal.App.4th 675, 680; *see also Kevin R. v. Superior Court* (2010) 191 Cal.App.4th 676, 685 ("A parolee may bring a habeas proceeding challenging his or her parole conditions to superior court, appellate court and the Supreme Court, which have original jurisdiction to hear a habeas proceeding relating to parole.").) A petition for writ of habeas corpus is the proper filing for a paroled registered sex offender seeking ///
to challenge a condition of their paroles. (*See In re E.J.* (2010) 47 Cal.4th 1258, 1271; Cal. Rules of Court, 4.552(b)(2)(C).)

The *Dwyer* opinion referred to throughout the FAC in fact concerned a petition for writ of habeas corpus. Plaintiff fundamentally misreads *Dwyer*. The supervised person in *Dwyer* was

factually distinct from Plaintiff in that they had successfully completed a sex offender treatment program before transferring to HOPE, their attendance was nearly perfect, their Stable score was 2, they were employed, enrolled in college, and had no parole violations within the last few years. (*See* Defs.' RJN, Ex. D at 31.)

Nonetheless, putting aside the FAC's mischaracterization of *Dwyer*, the challenge to continued participation in HOPE's treatment program in *Dwyer* was brought pursuant a petition for writ of habeas corpus. Here, Plaintiff has failed to alleged compliance with the exhaustion requirement, has avoided bringing a petition for writ of habeas corpus, and seeks to obtain monetary damages from the Defendants without any prior showing of any wrongful conduct on their part. Accordingly, Defendants' demurrer should be granted.

D. Failure to Allege Facts Sufficient to State a Cause of Action Pursuant to Civ. Code § 52.1

The FAC alleges a cause of action pursuant to California Civil Code § 52.1. (FAC at 19.) § 52.1 provides a private right of action for damages against any person, "whether or not acting under color of law," who "interferes" or "attempts to interfere by threat, intimidation, or coercion, with the exercise or enjoyment by any individual or individuals of rights secured by the Constitution or laws of the United States, or of the rights secured by the Constitution or laws [of California]." "[T]he statute was intended to address only egregious interferences with constitutional rights, not just any tort." (*Julian v. Mission Community Hospita*l (2017) 11 Cal.App.5th 360, 395, as modified on denial of reh'g (May 23, 2017).)

The FAC alleges that "Plaintiff possesses statutory rights under Penal Code Section 3008(d)(2)-the right to a non-arbitrary, individualized clinical determination of treatment length and completion based on the criteria the Legislature established-and under 15 CCR Section 3574(f)(1)-

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the right to have treatment-completion and parole-discharge maintained as legally separate decisions." (FAC at 19:26-20:1.) Those allegations are false.

California Penal Code § 3008(d)(2) reads:

> Persons placed on parole on or after July 1, 2012, shall successfully

> complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed.

15 CCR Section 3574(f)(1) reads:

> When the Containment Team makes a determination to retain a participant in a sex offender management program, the determination shall be supported by good cause, as defined in Section 3000. A determination to retain a supervised person in a sex offender management program shall be stated in writing, signed by the sex offender treatment provider and parole agent on the CDCR Form 3043 Containment Team Meeting / Earned Discharge Consideration Committee (Rev.11/24), which is incorporated by reference. This completed form shall be delivered to the supervised person within 30 calendar days of the CTM and maintained in the supervised person's file. Reasons to retain a supervised person in a sex offender management program may include, but are not limited to:
>
> (1) Pursuant to Section 3573, a Level of Service or Case Management Inventory (LS/CMI) score of 11 or higher.

These provisions do not provide Plaintiff a statutory right.

Moreover, the "essence of a Bane Act claim is that the defendant, by the specified improper means (i.e., 'threats, intimidation or coercion'), tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law." (*Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 883.) "[T]he Bane Act requires that the challenged conduct be intentional." (*Simmons v. Superior Court* (2016) 7 Cal.App.5th 1113, 1125.) The FAC contains no factual allegations establishing that either Defendant intentionally tried to prevent plaintiff from doing something he had a right to do under the law.

Accordingly, Defendants' demurrer to the FAC's Bane Act claim should be granted.

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IV. CONCLUSION

The FAC fails to allege facts sufficient to state a cause of action, fails to allege exhaustion, and should have been brought as a petition for writ of habeas corpus. Defendants' demurrer should, therefore, be granted.

Dated: May 22, 2026

SIMS, LAWRENCE & BROGHAMMER

By: Cynthia G. Lawrence
CYNTHIA G. LAWRENCE
BRYAN L. MALONE
BLAZE VAN DINE
Attorneys for Defendants,
KATIE PALACIOS and
HOPE PROGRAM

PROOF OF SERVICE

I, Kim Schmitt, certify and declare as follows:

I am over the age of 18 years, and not a party to this action. My business address is 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. My business email is: kschmitt@sims-law.net I am employed in the County of Placer where this service occurs.

On the date set forth below, following ordinary business practice, I served a true copy of the foregoing document(s) described as:

DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S NOTICE OF DEMURRER AND DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT

☐ (BY MAIL) I am readily familiar with my employer's normal business practice for collection and processing of correspondence for mailing with the U.S. Postal Service. Correspondence so collected and processed is deposited with the U.S. Postal Service that same day in the ordinary course of business. I placed for deposit in the United States Postal Service in a sealed envelope, with postage fully prepaid, to the addressee(s) below.

☐ (BY PERSONAL SERVICE) I personally delivered the above document(s) by hand between 9:00 a.m. and 5:00 p.m. to the office of the addressee(s) below.

☐ (BY OVERNIGHT DELIVERY) I deposited in a box or other facility regularly maintained by Federal Express an express service carrier, or delivered to a courier or driver authorized by said express service carrier to receive such envelope(s) to be delivered by overnight delivery, with delivery fees paid or provided for, addressed to the person(s) on whom it is to be served below.

☒ (BY ELECTRONIC SERVICE) I transmitted via electronic service through electronic mail to the offices of the addressee(s) below as stated on the attached service list on this date before 5:00 p.m.

SEE ATTACHED SERVICE LIST

☒ (State) I certify and declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: May 22, 2026

Kim Schmitt

SERVICE LIST

Brendan Ngehsi Newanforbi Plaintiff, in Pro Per 1455 Cat Tail Drive Stockton, CA 95204 (209) 801-4442 E: bnn.cdl@gmail.com	**PLAINTIFF, IN PER**

EXHIBIT C

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Attorneys for Defendants
KATIE PALACIOS and HOPE PROGRAM

Filed JUL 15 2026
STEPHANIE BOHRER, CLERK
By DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive,

Defendants.

Case No.: STK-CV-UF-2026-0001032

~~[PROPOSED]~~ ORDER ON DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

Date: 7/15/26
Time: 9:00AM
Dept.: 10A

Complaint Filed: February 10, 2026
Trial Date: TBD

The demurrer of Defendants KATIE PALACIOS and HOPE PROGRAM to Plaintiff's First Amended Complaint came on for hearing in Department of this court on the date and time referenced above. Attorney Blaze Van Dine appeared on behalf of Defendants KATIE PALACIOS and HOPE PROGRAM. Plaintiff Brendan Ngehsi Newanforbi appeared in pro per on his own behalf. Having read and considered the demurrer, the memoranda, the request for judicial notice, and declarations filed by the parties, and having heard argument of counsel.

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MAY 22 2026

FILE BY FAX

IT IS ORDERED THAT:

The demurrer to the First Amended Complaint is sustained without leave to amend on the grounds that the First Amended Complaint fails to allege facts sufficient to state any cause of action.

DATED: July 15, 2026

JUDGE OF THE SUPERIOR COURT
GEORGE J. ABDALLAH, JR

PROOF OF SERVICE

I, Kim Schmitt, certify and declare as follows:

I am over the age of 18 years, and not a party to this action. My business address is 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. My business email is: kschmitt@sims-law.net. I am employed in the County of Placer where this service occurs.

On the date set forth below, following ordinary business practice, I served a true copy of the foregoing document(s) described as:

[PROPOSED] ORDER ON DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

☐ (BY MAIL) I am readily familiar with my employer's normal business practice for collection and processing of correspondence for mailing with the U.S. Postal Service. Correspondence so collected and processed is deposited with the U.S. Postal Service that same day in the ordinary course of business. I placed for deposit in the United States Postal Service in a sealed envelope, with postage fully prepaid, to the addressee(s) below.

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SEE ATTACHED SERVICE LIST

☒ (State) I certify and declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: May 22, 2026

Kim Schmitt

SERVICE LIST

Brendan Ngehsi Newanforbi Plaintiff, in Pro Per 1455 Cat Tail Drive Stockton, CA 95204 (209) 801-4442 E: bnn.cdl@gmail.com	**PLAINTIFF, IN PER**